

Education Act, 1971

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Education Act, 2028

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2028.5.24

Amending Acts

1. Education (First Amendment) Act, 2033 2033.7.4
2. Education (Second Amendment) Act, 2036 2036.8.5
3. Education (Third Amendment) Act, 2037 2037.5.26
4. Some Nepal Acts Amendment Act, 2041 2041.7.27
5. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
6. Education (Fourth Amendment) Act, 2045 2045.7.10
7. Education (Fifth Amendment) Act, 2049 2049.7.13
8. Education (Sixth Amendment) Act, 2055 2055.1.1
9. Education (Seventh Amendment) Act, 2058 2058.10.25

Certification and Publication Dates

10. This Act has come into force from the 17th of Shrawan, 2063 B.S. Some Nepal Acts relating to Education and Sports Amendment Act, 2063 2063.9.14
11. This Act has come into force from the 15th of Jestha, 2064 B.S. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
12. Act made to amend Some Nepal Acts, 2072 2072.11.13
13. Education (Eighth Amendment) Act, 2073 2073.3.15
14. This Act has commenced from the 1st of Bhadra, 2075 B.S. Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074 2074.6.30
15. Education (Ninth Amendment) Act, 2074 2074.7.6
16. Act made to amend Some Nepal Acts, 2075 2075.11.19

Act No. 8 of the year 2028

Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. An Act made to provide for education to be imparted in schools in accordance with the plan of the National Education System

Preamble: Amended by the Eighth Amendment. Whereas, to prepare the manpower necessary for national development, to maintain the morality, decency, and ethics of the general public in accordance with the federal democratic republican system, and to develop quality education by improving the management of schools to be established and already established and operating within the country, it is desirable;

Therefore, His Majesty King Mahendra Bir Bikram Shah Deva has enacted this Act with the advice and consent of the National Panchayat. 1. Short Title, Extent, and Commencement: (1) This Act may be called the "Education Act, 2028".

(2) This Act shall extend throughout Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Bharat.

(3) This Act shall come into force on a date to be appointed by the Government of Nepal by notification in the Nepal Gazette in the area specified. This Act has been enforced by the Ministry in the following districts from the following dates:-

Date Districts enforced

2028.7.15 Chitwan, Kaski,

2029.6.15 Dang, Banke, Baglung, Rupandehi, Dhanusha, Kavre, Saptari, Dhankuta, Morang, Jhapa, Jumla, Kailali, Kanchanpur. 2030.7.1 Ilam, Panchthar, Taplejung, Tehrathum, Sankhuwasabha, Sunsari, Sindhupalchok, Kathmandu, Bhaktapur, Lalitpur, Gorkha, Manang, Lamjung, Tanahu, Syangja, Surkhet. 2031.6.21 Solukhumbu, Okhaldhunga, Khotang, Bhojpur, Udayapur, Siraha, Dolakha, Ramechhap, Sindhuli, Sarlahi, Mahottari, Nuwakot, Mustang, Myagdi, Parbat, Gulmi, Arghakhanchi, Palpa, Nawalparasi, Kapilvastu.

2032.6.20 Dardula, Baitadi, Dadeldhura, Bajhang, Bajura, Achham, Bara, Parsa, Rautahat, Makwanpur, Rasuwa, Dhading, Dolpa, Pyuthan, Salyan, Rukum, Rolpa, Titricot, Mugu, Humla, Bardiya, Dailekh, Jajarkot, Doti.

2. Definitions: Unless the subject or context otherwise requires, in this Act,- (a) Amended by the Seventh Amendment. "Pre-primary School" means a school that provides one year of early childhood education to children who have completed four years of age. (b) Amended by the Fourth Amendment. "Primary Education" means education provided from Grade one to Grade five. (b1) Amended by the Eighth Amendment. "Basic Education" means education provided from early childhood education to Grade eight. (c) Omitted by the Fourth Amendment. (d) Amended by the Eighth Amendment. "Secondary Education" means education provided from Grade nine to Grade twelve. (d1) Amended by the Eighth Amendment. "Special Education" means education provided to children who are blind, deaf, autistic, intellectually disabled, hard of hearing, or extremely physically disabled, by placing them in separate groups through a special type and specific medium. (d2) Added by the Eighth Amendment. "Inclusive Education" means the following education:- (1) Education provided to children with disabilities such as blindness, low vision, deafness, hard of hearing, autism, intellectual, physical or other disabilities, while remaining under the regular educational system, (2) Education provided to individuals left behind due to social, economic, or geographical reasons, in a non-discriminatory environment. (d3) Added by the Seventh Amendment. "Community School" means a school that has obtained permission or approval to receive regular grants from the Government of Nepal. (d4) Added by the Seventh Amendment. "Institutional School" means a school that has obtained permission or approval not to receive regular grants from the Government of Nepal. (d5) Amended by the Eighth Amendment. "Basic School" means a school providing education as per clause (b1). (d6) Added by the Eighth Amendment. "School Education" means basic and secondary education. (d7) Added by the Eighth Amendment. "Board" means the National Examination Board constituted under section 4A. (d8) Added by the Eighth Amendment. "Council" means the National Education Council constituted under section 7A. (e) Amended by the Seventh Amendment. "School" means a community school or an institutional school. (e1) Added by the Fifth Amendment. "Primary School" means a school providing education as per clause (b). (e2) Repealed by the Eighth Amendment. (e3) Amended by the Eighth Amendment. "Secondary School" means a school providing education as per clauses (b1) and (d) or as per clause (d). (e4) Repealed by the Eighth Amendment. (f) "Teacher" means a teacher of a school and includes the principal teacher. (f1) Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. "Commission" means the Omitted by the Seventh Amendment.

Teacher Service Commission constituted under section 11J.

(f2) Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. "Secretariat" means the secretariat of the Commission.

(f3) Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. "Chairperson" means the chairperson of the Commission.

(f4) Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. "Member" means a member of the Commission and includes the chairperson of the Commission.

(f5) Added by the Sixth Amendment. "Guardian" means, in relation to a student studying in a school, the person recorded as the guardian in the school records, and for the purposes of section 12, also includes the father, mother, grandfather or grandmother of the student, and in the case of a student without such guardian, the person providing guardianship to such student.

(f6) Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. "Employee" means an employee other than a teacher working in a community school.

(g) "Secondary Education Completion Examination" (School Leaving Certificate Examination) means the examination held at the end of secondary education.

(g1) Added by the Eighth Amendment. "Basic Education Completion Examination" means the examination held at the end of the basic level.

(h) "Prescribed" or "as prescribed" means prescribed or as prescribed by the Amended by the Some Nepal Acts Amendment Act, 2075. rules or regulations made under this Act.

(i) Added by the Second Amendment. "Permission" means a temporary approval given by the Government of Nepal to open a school or add classes in any specified place or area where permanent approval and assistance have not yet been granted.

(j) Added by the Second Amendment. "Approval" means the permanent approval given by the Government of Nepal to a school that has fulfilled the prescribed conditions.

(k) Added by the Second Amendment. "Residential School" means a school approved as a residential school by the Government of Nepal.

(l) Amended by the Seventh Amendment. "Educational Trust" means a Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. public or private trust established by a person with the objective of not making a profit for operating a school.

(l1) Added by the Eighth Amendment. "Ministry" means the Ministry of Education.

(l2) Added by the Eighth Amendment. "Permanent Residence Permit" means a Diversity Immigrant Visa (DV), Permanent Resident Visa (PR), or Green Card provided to a Nepali citizen by a foreign country permitting permanent residence under certain conditions, or any other permit of permanent residence under any name granted to a Nepali citizen for permanent residence abroad. 3.

Permission Required to Open a School: Amended by the Eighth Amendment. (1) If any Nepali citizen desires to open a school under an educational trust, he/she shall submit an application to the prescribed authority for permission, along with a recommendation from the concerned Village Education Committee or Municipal Education Committee for a basic school, and from the concerned District Education Committee for a secondary school, specifying the prescribed details. (2) Upon receipt of an application under sub-section (1),

the Amended by the Eighth Amendment. Ministry or prescribed authority shall make the necessary inquiry into the application, and if upon inquiry it appears appropriate to grant permission to open the school, permission shall be granted subject to compliance with the prescribed terms and conditions. (3) If a school opened with permission under sub-section (2) is found to have complied with the prescribed terms and conditions, the Amended by the Eighth Amendment. Ministry or prescribed authority shall grant approval. Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. (4) Schools operating as companies at the time of the commencement of this section may, if they so desire, submit an application to the prescribed authority to dissolve the company and operate the school under an educational trust. (5) Upon receipt of an application under sub-section (4), the prescribed authority shall make the necessary inquiry into the application, and if upon inquiry the request of the applying school appears reasonable, approval shall be given to operate the school as requested. (6) Notwithstanding anything contained in sub-sections (2), (3) or (5), permission or approval shall not be granted to operate the following schools as an Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. educational trust:- (a) School operating in a government or public building, (b) School operating in a building constructed on government or public land, (c) School operating in a building constructed on land or a building donated or gifted to the school by any person or institution. (7) Notwithstanding anything contained in sub-sections (2), (3) and (5), permission or approval to open a pre-primary school from its own resources shall be given by the concerned Rural Municipality or Municipality. (a) Omitted by the Eighth Amendment. (b) Omitted by the Eighth Amendment.

Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. (7C) Notwithstanding anything contained in this Act or other prevailing laws, while operating a school under an educational trust, the following matters shall be done as follows:-

- (a) The trustees operating the educational trust must be in the form of an incorporated body,
- (b) While operating an educational trust, the board of trustees must have at least five members if it is a public trust, and at least three members if it is a private trust,
- (c) The accounts of income and expenditure of the educational trust must be maintained as prescribed and audited by a recognized auditor,
- (d) The current trustees of the educational trust may, during their lifetime or after their demise, appoint their successor to act as the trustee. Provided that, in the case of a public educational trust, approval of the Ministry must be obtained for such appointment of successor. Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. (7D) If any social, charitable, or welfare institution desires to operate a school with the objective of not making a profit, it may operate a school under a public educational trust by obtaining approval from the prescribed authority. Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. (7E) The subjects to be taught, conditions to be complied with, and other arrangements for schools operated under sub-section (7D) shall be as prescribed.

(8) Notwithstanding anything contained in sub-sections (1), (2) and (3), no person shall be granted permission or approval to open a school to be affiliated with any foreign teaching institution. Provided that, if an agreement has been made with the Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. Ministry regarding opening a school affiliated with a foreign teaching institution, or if a recommendation has been made by a diplomatic mission to open such a school, the Amended by the Eighth Amendment. Ministry may grant permission or approval to open the school subject to conditions. An application may be submitted directly to the Added by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. Ministry for opening such a school.

(9) If a school that has received permission or approval under sub-section (8) does not operate the school according to the conditions, the Amended by the Eighth Amendment. Ministry may at any time close such a school.

(10) Other provisions under this Act shall not apply to a school that has received permission or approval under sub-section (8). 4. Operation of School: The operation of a school shall be as prescribed. 4A.

Formation of Board: Added by the Eighth Amendment. (1) There shall be one National Examination Board for conducting, coordinating, and managing the secondary education examination. (2) The Board shall be constituted as follows:- (a) A person appointed by the Government of Nepal from among persons who have obtained at least a Master's degree from a recognized university and have at least twelve years of experience in the field of education and examination ? Chairperson (b) Secretary of the Ministry ? Vice-Chairperson (c) Joint-Secretary of the Ministry (looking after school education) ? Member (d) Director General, Department of Education ? Member (e) Executive Director, Curriculum Development Centre ? Member (f) Member-Secretary, Council for Technical Education and Vocational Training ? Member (g) Controller of Examinations, Tribhuvan University ? Member (h) At least three persons, including at least two women, nominated by the Board from among persons who have gained expertise with at least ten years of experience in teaching, education administration, and examination ? Member (i) Two persons nominated by the Ministry, including at least one woman, from among the principals of community and institutional secondary schools ? Member (j) An employee designated by the Ministry from among the gazetted first class officers of the Nepal Education Service or senior employees of the Board ? Member-Secretary (3) For the appointment of the Chairperson of the Board, a recommendation committee shall be constituted under the chairmanship of the Chairperson of the Public Service Commission, with two members nominated by the Ministry, including at least one woman from among renowned educationists, to make a recommendation to the Government of Nepal; and the Government of Nepal shall appoint the person recommended by that committee as the Chairperson of the Board. (4) The term of office of the Chairperson and nominated members of the Board shall be four years. (5) Notwithstanding anything contained in sub-section (4), if the Chairperson or a nominated member of the Board fails to honestly fulfill their official responsibilities, based on the recommendation of a committee constituted as prescribed, the Government of Nepal may, in the case of the Chairperson, and the Ministry may, in the case of a member, remove him/her from office at any time. Provided that, before such removal, he/she shall not be deprived of a reasonable opportunity to present his/her defense. (6) The procedure for meetings of the Board shall be as prescribed. 4B.

Board to be an Autonomous and Corporate Body: Added by the Eighth Amendment. (1) The Board shall be an autonomous and corporate body with perpetual succession. (2) The Board shall have its own separate seal for all its acts and business. (3) The Board may, like a person, acquire, hold, sell, or otherwise dispose of movable and immovable property. (4) The Board may, like a person, sue and be sued in its own name. (5) The Board may, like a person, enter into contracts, exercise rights under contracts, and discharge obligations. 4C. Functions, Duties, and Powers of the Board: Added by the Eighth Amendment. The functions, duties, and powers of the Board shall be as follows:- (a) To determine and implement, or cause to be implemented, the policies of the Board subject to the examination policy approved by the Ministry, (b) To prepare and implement, or cause to be implemented, long-term plans of the Board, (c) To evaluate, or cause to be evaluated, whether the dignity and quality of school education examinations are maintained, (d) To approve the annual budget and program of the Board, (e) To mobilize necessary financial resources for the smooth functioning of the Board, (f) To submit periodic and annual reports of the Board to the Ministry, (g) To perform, or cause to be performed, other functions as prescribed. 4D. Functions, Duties, and Powers of

Office Bearers and Service Conditions and Facilities: Added by the Eighth Amendment. (1) The Chairperson of the Board shall be the full-time chief officer of the Board. (2) The Member-Secretary of the Board shall be the full-time chief administrative officer of the Board. (3) The remuneration, service conditions, and facilities of the Chairperson of the Board shall be as prescribed. (4) The functions, duties, and powers of the Chairperson and Member-Secretary of the Board shall be as prescribed. (5) The Chairperson, Vice-Chairperson, Members, and Member-Secretary of the Board shall receive meeting allowances as specified by the Ministry with the consent of the Ministry of Finance for participating in meetings of the Board. 4E.

Provision Regarding Employees: Added by the Eighth Amendment. (1) There shall be employees in the Board as required. (2) The Ministry may, upon the request of the Board, depute any employee of the Government of Nepal to work in the Board. (3) The remuneration, service conditions, and facilities of the employees of the Board shall be as prescribed. (4) While making provisions for service conditions under sub-section (3), in the case of employees who have been working continuously on temporary basis for at least one year in the Higher Secondary Education Council at the time of the commencement of this section, they shall be allowed to participate in a competitive examination to be held after this section comes into effect for permanent appointment through internal advertisement once; and if they do not wish to participate in such advertisement, employees who have been working continuously on temporary basis for at least five years in such Council shall be provided with facilities and retired. Added by the Eighth Amendment. 4F. Fund of the Board: (1) There shall be a separate fund in the name of the Board. (2) The fund under sub-section (1) shall consist of the following amounts:- (a) Amounts received from the Government of Nepal, (b) Amounts received from fees collected from students, (c) Amounts received as grants or loans from foreign individuals, governments, associations, or institutions, (d) Amounts received from domestic individuals, institutions, or bodies, (e) Amounts received from other sources. (3) The Board shall obtain the approval of the Ministry of Finance before receiving any amount under clause (c) of sub-section (2). (4) All expenses incurred on behalf of the Board shall be borne out of the fund under sub-section (1). (5) The money in the fund of the Board shall be deposited by opening an account in a commercial bank of Nepal. (6) The operation of the fund of the Board shall be subject to the joint signature of the Member-Secretary of the Board and the Chief Accounts Officer. Added by the Eighth Amendment. 4G. Accounts and Audit: (1) The accounts of income and expenditure of the Board shall be kept in the format adopted by the Government of Nepal. (2) The audit of the Board shall be carried out by the Auditor General. (3) The Ministry may, if it so desires, inspect or cause to be inspected the books of accounts of the Board at any time. Added by the Eighth Amendment. 4H. Power to give Directions: (1) The Ministry may give necessary directions to the Board. (2) It shall be the duty of the Board to comply with the directions given under sub-section (1). Added by the Eighth Amendment. 4I.

Delegation of Powers: The Board may, as necessary, delegate some of the powers vested in it under this Act or the rules made under this Act to the Chairperson, Vice-Chairperson, Member, Member-Secretary, any officer of the Government of Nepal, or an officer employee of the Board. Added by the Eighth Amendment. 4J. Office of the Board: (1) The office of the Board shall be located within the Kathmandu Valley. (2) The Board may, with the approval of the Ministry, open branch offices in other parts of Nepal as required. Added by the Eighth Amendment. 4K. Provisions Relating to Conduct and Management of Examinations: (1) The examination held at the end of Grade ten of secondary education and the secondary level shall be conducted by the Board. Provided that, the examination at the basic level shall be conducted by the District Education Office. (2) The examination held at the end of Grade ten shall be conducted at the regional level, and the examination at the end of the basic level shall be conducted at the district level. (3) Other provisions relating to conducting examinations shall be as prescribed. Added by the Eighth Amendment. 4L. Liaison with the Government of Nepal: The Board shall liaise with the Government of Nepal through the Ministry. Added by

the Eighth Amendment. 4M. Recognition of Secondary Education: The recognition of the Secondary Education Completion Certificate shall be equivalent to having passed the Proficiency Certificate level or Higher Secondary level. Added by the Eighth Amendment. 5. 6. Types of Secondary Education: Secondary education shall be of the following types:- (a) General Secondary Education Omitted by the Fourth Amendment. (b) (c) Sanskrit Secondary Education. Added by the Eighth Amendment. (d) Technical and Vocational Secondary Education. Provided that, in such education, an additional year of practical training shall be given as prescribed. Amended by the Eighth Amendment. 6A.

Provisions Relating to Conduct of Special Education, Inclusive Education, Non-formal Education, Continuing Education, Distance Education, and Open Education: (1) The Ministry may, by making necessary infrastructure arrangements, provide for the conduct of special education, inclusive education, non-formal education, continuing education, distance education, or open education in any community school. (2) If any school desires to conduct special education, inclusive education, non-formal education, continuing education, distance education, and open education, the Ministry may make the necessary inquiry into the matter and grant approval to such school to conduct such education as prescribed. (3) The conduct of distance education, special education, and inclusive education shall be similar to general education. (4) Notwithstanding anything contained in sub-section (3), for children who are blind, low vision, totally blind, deaf, hard of hearing, autistic, intellectually disabled, or deaf-blind, different provisions may be made in curriculum, textbooks, teaching-learning, and evaluation systems. (5) The conduct of non-formal education, continuing education, and distance and open education shall be as prescribed. Amended by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. 7. Medium of Education: (1) The medium of education in a school shall be the Nepali language, the English language, or both languages. (2) Notwithstanding anything contained in sub-section (1), in the following circumstances, the medium of education in a school may be as follows:- (a) Primary Omitted by the Eighth Amendment. education may be imparted in the mother tongue, (b) When a non-Nepali citizen studies in a school in Nepal, he/she may study a subject in another language instead of the compulsory Nepali subject Amended by the Eighth Amendment., (c) While teaching a language subject, the medium of education may be that same language, (d) When teaching the compulsory English subject, it must be taught in the English language. Added by the Eighth Amendment. 7A.

Provision Relating to Council: (1) There shall be a National Education Council for the purpose of advising and providing suggestions to the Government of Nepal regarding determining education policy. (2) The Council shall be constituted as follows:- (a) Minister for Education or Minister of State ? Chairperson (b) Member, National Planning Commission (looking after education) ? Member (c) Chairperson, University Grants Commission ? Member (d) Vice-Chairperson, Council for Technical Education and Vocational Training ? Member (e) Three persons, including one woman, nominated by the Ministry from among the office bearers of universities ? Member (f) Secretary of the Ministry ? Member (g) Secretary, Ministry of Finance ? Member (h) Director General, Department of Education ? Member (i) President, Nepal Teachers' Union ? Member (j) Chairperson, Nepal Teachers' Federation ? Member (k) Two persons, including at least one woman, nominated by the Council from among educationists ? Member (l) Two persons, including at least one woman, nominated by the Council from among the office bearers of guardian associations or organizations registered under prevailing law ? Member (m) Two persons, including one woman, nominated by the Ministry from among the chairpersons of management committees of community schools ? Member (n) Two persons, including one woman, nominated by the Ministry from among the operators of institutional schools ? Member (o) One person from among the representatives of institutional school teachers professional associations or organizations ? Member (p) Representative, National Federation of the Disabled ? Member (q)

Joint-Secretary of the Planning Division of the Ministry ? Member-Secretary (3) The term of office of nominated members under sub-section (2) shall be three years. (4) Notwithstanding anything contained in sub-section (3), if an investigation committee constituted by the Council recommends that any nominated member of the Council has failed to honestly fulfill their official responsibilities, the Ministry may remove that person from the post of member at any time. Provided that, before such removal, he/she shall not be deprived of a reasonable opportunity to present his/her defense. (5) The Secretariat of the Council shall be located in the Ministry. (6) Other functions, duties, and powers of the Council shall be as prescribed. (7) The procedure for meetings of the Council shall be as determined by the Council itself. Added by the Eighth Amendment. 7B.

Educational Quality Testing Centre: (1) There shall be an Educational Quality Testing Centre for the purpose of testing the quality of school education. (2) The Government of Nepal shall appoint a Chief Education Examiner to work as the chief of the Educational Quality Testing Centre. (3) There shall be a committee headed by the Chairperson of the Public Service Commission, with the Member looking after education of the National Planning Commission and the Secretary of the Ministry as members, to recommend to the Government of Nepal for the appointment of the Chief Education Examiner. (4) The committee under sub-section (3) shall recommend names for appointment to the post of Chief Education Examiner from among persons who have worked in at least the gazetted first class post of the Nepal Education Service. (5) The appointment, remuneration, and other terms of service of the Chief Education Examiner shall be as prescribed. (6) Other functions, duties, and powers of the Educational Quality Testing Centre shall be as prescribed. 8. Curriculum and Textbooks of School: A school must implement the curriculum and textbooks approved by the Government of Nepal. Added by the Seventh Amendment. 8A. Department of Education: (1) There shall be a Department of Education under the Ministry. (2) There shall be a Director General as the chief of the Department of Education under sub-section (1). (3) The functions, duties, and powers of the Director General shall be as prescribed. Amended by the Fourth Amendment. 9. Regional Education Directorate: (1) The Government of Nepal may establish a Regional Education Directorate in each development region. (2) There shall be a Regional Education Director as the chief of the Directorate established under sub-section (1) Amended by the Fifth Amendment.. (3) The functions, duties, and powers of the Regional Education Director shall be as prescribed. Amended by the Fourth Amendment. 10. District Education Office: (1) The Government of Nepal may establish one District Education Office in each district. (2) There shall be a District Education Officer as the chief of the Office established under sub-section (1). (3) The functions, duties, and powers of the District Education Officer shall be as prescribed. Amended by the Seventh Amendment. 11.

Formation of District Education Committee: (1) For the purpose of overseeing and managing schools within the district, a District Education Committee shall be formed in each district. (2) The District Education Committee under sub-section (1) shall consist of the following members:- Amended by the Some Nepal Acts Amendment Act, 2072. (a) Chief of the District Coordination Committee ? Chairperson Amended by the Some Nepal Acts relating to Education and Sports Amendment Act, 2063. (b) Chief District Officer ? Member (c) Omitted by the Some Nepal Acts Amendment Act, 2072. (c1) Omitted by the Some Nepal Acts relating to Education and Sports Act, 2063. (d) Omitted by the Eighth Amendment. (e) One person nominated by the District Education Committee from among the chairpersons of School Management Committees of community schools within the district ? Member (f) One person nominated by the District Education Officer from among the chairpersons of School Management Committees of institutional schools within the district ? Member (g) Omitted by the Eighth Amendment. Amended by the Eighth Amendment. (h) Three persons, including at least one Dalit and one woman, nominated by the District Education Committee from among

guardians or educationists ? Member (i) Chairperson of the District Nepal Teachers' Federation ? Member (j) District Education Officer ? Member-Secretary (3) The term of office of a nominated member under sub-section (2) shall be two years. If a nominated member is found to have behaved contrary to his/her position, the appointing authority or body may remove him/her at any time.

Provided that, before such removal, he/she shall not be deprived of a reasonable opportunity to present his/her defense. (4) Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (5) The functions, duties, and powers of the District Education Committee shall be as follows:- (a) To formulate district-level plans relating to education, (a1) Omitted by the Eighth Amendment. (b) To motivate Rural Municipalities and Municipalities to provide financial support to community schools, (c) To assist in conducting examinations in a dignified and clean environment within the district, (d) To make arrangements for mobilizing resources for the development of educational quality in the district, (e) To determine the remuneration of auditors for community schools, Amended by the Eighth Amendment. (f) To establish minimum grade-wise posts for basic schools up to Grade five within community schools in the district based on geographical remoteness in the case of (4) The Commission shall issue a temporary teaching license to a teacher working in a school at the time of the commencement of this Act, within six months from the date of commencement of this Act. (5) A teacher who has obtained a temporary teaching license pursuant to sub-section (4) must obtain a permanent teaching license from the Commission within five years. (6) If a temporary teacher fails to obtain a permanent teaching license within the period specified in sub-section (5), such teacher shall automatically retire, and a permanent teacher shall be retired as specified. Amended by the Eighth Amendment.(6a) Notwithstanding anything contained elsewhere in this section, a person who has obtained at least a bachelor's degree in Science, Computer Science, Engineering, Mathematics, English, Office Management and Accounting, Law, Agriculture, or Veterinary Science shall be eligible to appear in the examination for a temporary teaching license for such subject. Amended by the Eighth Amendment.(6b) For the purpose of issuing a temporary teaching license pursuant to sub-section (6a), the Commission shall conduct a separate examination as specified. Added by the Eighth Amendment.(6c) The Commission shall grant a temporary teaching license to a candidate who succeeds in the examination pursuant to sub-section (6b), and such license shall be valid for a period of five years. Added by the Eighth Amendment.(6d) For teachers teaching in special education, inclusive education, and schools operated with the objective as per sub-section (7d) of section 3, the Commission shall make arrangements for issuing a teaching license as specified.

Added by the Eighth Amendment.(6e) For the purpose of providing advice to the Commission on matters relating to the teaching license, there shall be a Teachers' Council as specified, including experts recommended by the Nepal Teachers' Federation. (7) Other provisions relating to the teaching license shall be as specified. Added by the Seventh Amendment.11dha. Grant not to be reduced: The Government of Nepal shall not reduce the amount of grant that it has been providing to community schools at the time of the commencement of this Act. Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.Provided that, if any school fails to maintain the prescribed educational standard, the amount of grant being provided to such school may be reduced as specified. Added by the Seventh Amendment.11na. May make provision for scholarship: The Government of Nepal Deleted by the Eighth Amendment. may make provision for scholarship as specified for students enrolling in schools for secondary education. Added by the Seventh Amendment.11ta. May provide grant to child development center: The Government of Nepal may provide grant as specified to Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.Early Childhood Education Centers established with the assistance of a Rural Municipality or Municipality. Added by the Eighth Amendment.11ta1. Provision relating to early childhood education:

Provisions relating to the operation and management of early childhood education shall be as specified. Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.11tha.

School management may be taken over: (1) Amended by the Act to Amend Some Nepal Acts, 2015.If a local level or a management committee wishes to take over the management of any community school, an application specifying the matters as specified shall be submitted to the specified authority. (2) Upon examining the application submitted pursuant to sub-section (1), if it appears that such Amended by the Act to Amend Some Nepal Acts, 2015.local level or management committee has fulfilled the specified conditions, the specified authority may entrust the management of such community school to the applicant. (3) In the school whose management has been taken over by the Amended by the Act to Amend Some Nepal Acts, 2015.local level or management committee pursuant to sub-section (2), the service, terms, and facilities of the teachers appointed under the posts approved by the Government of Nepal shall be the same as those of teachers in other community schools, and the Government of Nepal shall provide a lump sum amount to the school equal to the additional amount that the school would have to pay for the salary, allowance, and provident fund of such teachers. (4) In the school whose management has been taken over by the Amended by the Act to Amend Some Nepal Acts, 2015.local level or management committee pursuant to sub-section (2), additional teachers may be appointed at the expense of such school. (5) A teacher appointed pursuant to sub-section (4) shall receive remuneration and facilities equal to those of other teachers of that school. (6) The Government of Nepal may, considering the necessity of the school whose management has been taken over by the Amended by the Act to Amend Some Nepal Acts, 2015.local level or management committee pursuant to sub-section (2), provide additional posts to such school. Added by the Eighth Amendment.11da.

School may be operated in partnership: (1) The Government of Nepal may cause schools to be operated in partnership among community schools and schools operated under public educational trusts, as well as among schools operated under more than one public educational trust. (2) The formation, functions, duties, and powers of the management committee of schools pursuant to sub-section (1), the modes of partnership, and other arrangements shall be as specified. 12.

School Management Committee: Amended by the Eighth Amendment.(1) For the operation, supervision, and management of a community school, there shall be a School Management Committee in each school consisting of the following members: (a) Four members, including two women, chosen from among themselves by the parents - Member (b) The ward chairperson of the relevant ward of the Rural Municipality or Municipality where the school is located, or a member nominated by that ward committee from among the members of the ward committee - Member (c) Two members, including one woman, nominated by the School Management Committee from among the school's founder, local intellectuals, education enthusiasts, persons who have been continuously supporting the school for ten years, or persons who have provided cash or in-kind support of ten lakh rupees or more to the school - Member (d) One member chosen from among themselves by the teachers of the school - Member (e) The principal of the school - Member-Secretary (2) In the School Management Committee of a secondary school providing study or training in technical and vocational subjects, there shall be two representative members from the district-level Federation of Industry and Commerce. Added by the Eighth Amendment.(2a) The members of the School Management Committee shall elect the Chairperson of that committee from among the members pursuant to clauses (a), (b), or (c) of sub-section (1). Added by the Eighth Amendment.(2b) Until the Chairperson of the School Management Committee is elected, or in the absence of the Chairperson, the senior most member of that committee shall chair the meeting.

Added by the Eighth Amendment.(2c) In the management committee of a school operating special education,

at least fifty percent of the members shall be guardians of persons with disabilities, and in the management committee of a school operating inclusive education or resource classes, at least one member shall be a person with a disability. (3) The concerned School Inspector and Resource Person shall be invited to participate as observers in the meetings of the School Management Committee. (4) For the operation, supervision, and management of an institutional school, there shall be a School Management Committee in each school consisting of the following members: (a) A person nominated by the District Education Officer on the recommendation of the school from among the founder or investors of the school - Chairperson (b) Two members, including at least one woman, nominated by the School Management Committee from among the parents - Member (c) One member nominated by the concerned Rural Municipality or Municipality from among local education enthusiasts or social workers - Member (d) The School Inspector of the concerned area - Member (e) One member chosen from among themselves by the teachers of the concerned school - Member (f) The principal of the school - Member-Secretary (5) Amended by the Eighth Amendment. The term of office of the Chairperson or members chosen or nominated pursuant to sub-sections (1), (2a), and (4) shall be Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006. three years. If it appears that such Chairperson or member has not behaved in accordance with his or her position, the parents, office bearer, or body that chose or nominated him/her may remove him/her from the position at any time. Provided that, before such removal, he/she shall not be deprived of an opportunity to submit his/her defense.

Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006. (5a) Notwithstanding anything contained in sub-section (4), if it appears necessary for the formation of the School Management Committee of any institutional school which has been provided with building or land by the Government of Nepal, or which has received any kind of assistance, or which is operated for a special purpose, or which operates special education, to be done by the Government of Nepal, the Ministry of Education and Sports may, stating the reason therefor, do so itself. (6) The functions, duties, and powers of the School Management Committee of a community school shall be as follows: (a) To mobilize the means and resources received for school operation, (b) To keep and cause to be kept an inventory of the movable and immovable property of the school and to ensure its security, (c) To keep updated the educational, physical, and financial statistics and records of the school, (d) To approve the annual budget of the school and provide information thereof to the Village Education Committee and the District Education Office, (e) To maintain a clean educational environment in the school and not to allow the school environment to be vitiated based on political, religious, or communal sentiments, (f) To mark the attendance of teachers deployed by the District Education Office and assign them work, (g) To cause an annual audit of the school to be conducted by an auditor designated by the District Education Office, (h) To take immediate necessary action according to the auditor's report and submit a report thereof to the District Education Office, (i) To comply with the orders and directives given by the District Education Committee and the District Education Office, Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006. (j) To arrange for remuneration and facilities as specified for teachers appointed or promoted by the committee itself, (k) To form a Parent-Teacher Association regarding maintaining the quality of education. (7) The functions, duties, and powers of the School Management Committee of an institutional school shall be as follows: (a) To mobilize the means and resources received for school operation, (b) To arrange for necessary physical facilities for the school, (c) To ensure the security and protection of the movable and immovable property of the school, (d) To maintain a clean educational environment in the school, (e) To compulsorily implement the curriculum and textbooks implemented by the Government of Nepal and, if it appears necessary to teach other supporting textbooks, to obtain approval from the Amended by the Eighth Amendment. National Curriculum Development and

Evaluation Council, (f) To appoint persons who have obtained a teaching license from the Commission and fulfill the qualifications for candidacy for the teacher post as per prevailing law to the teacher post, Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.(f1) To initiate the process of permanent filling within six months from the date of commencement of this clause for teachers appointed on a temporary basis before the commencement of this clause, and within six months from the date of such appointment for teachers appointed after the commencement of this clause, in order to provide them with an opportunity to become permanent, (g) To pay salary to teachers without reducing the salary scale prescribed by the Government of Nepal, (h) To take action against indisciplined teachers, (i) To comply with the directives given by the Government of Nepal.

Amended by the Eighth Amendment.(7a) Provisions relating to the operation, supervision, and management of schools operated under educational trusts shall be as specified. Deleted by the Eighth Amendment.(7b)

(8) Other functions, duties, powers, and procedures relating to meetings of the School Management Committee shall be as specified. Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.12ka. School Management Committee may be dissolved: (1) If the School Management Committee of any school fails to fulfill its specified responsibilities, the District Education Committee may dissolve such School Management Committee stating the reason therefor. Provided that, before such dissolution, the School Management Committee shall be given a reasonable opportunity to submit its defense.

(2) After the dissolution of the School Management Committee pursuant to sub-section (1), until another School Management Committee is formed, or if a School Management Committee is not formed for any other reason, the District Education Committee may form an ad hoc School Management Committee to perform the functions of the School Management Committee. Added by the Seventh Amendment.12kha. Education Development Fund: (1) Deleted by the Eighth Amendment. There shall be an Education Development Fund at the central level to assist in the physical infrastructure development of community schools and to enhance the educational quality in such schools.

(2) The Fund pursuant to sub-section (1) shall consist of the following amounts:?

(a) Grant amount received from the Government of Nepal,

(b) Amount received from institutional schools, being Deleted by the Education and Sports Related Some Nepal Acts, 2006 an amount as specified of the annual total income of such school,

(c) Amount received from donations,

(d) Amount received from other sources. Amended by the Eighth Amendment.12ga. Fund Management Committee: (1) For the management of the Education Development Fund, there shall be a Fund Management Committee consisting of the following members:?

Amended by the Eighth Amendment.(a) Secretary of the Ministry - Chairperson

(b) Representative, Ministry of Finance - Member

Amended by the Eighth Amendment.(c) Representative, Ministry of Federal Affairs and Local Development - Member

(d) Joint Secretary (Educational Administration Division), Ministry of Education - Member

(e) Director General, Department of Education - Member

(f) Representative, Office of the Auditor General - Member

(g) Two persons nominated by the Ministry of Education from among the chairpersons of central-level associations of institutional schools - Member

Amended by the Eighth Amendment.(h) Chief of the Basic Education Section of the Ministry - Member-Secretary

(2) Other functions, duties, and powers of the Fund Management Committee pursuant to sub-section (1), and procedures relating to its meetings, shall be as specified. 13.

District Education Fund: (1) A District Education Fund shall be established in each district, which shall consist of the following amounts: (a) Grant received from the Government of Nepal, Amended by the Fifth Amendment.(a1) Deleted by the Act to Amend Some Nepal Acts, 2015 (b) Deleted by the Third Amendment (c) Amount collected from the education tax, (d) Amount received from donations, and (e) Amount received from other sources. (2) The operation of the Fund pursuant to sub-section (1) shall be as specified. Proviso deleted by the Fourth Amendment Added by the Third Amendment.(3) The audit of the Fund pursuant to sub-section (1) shall be conducted by the Office of the Auditor General. 13ka. School Fund: (1) There shall be a School Fund in each school, which shall consist of the following amounts: (a) Grant received from the Government of Nepal, Added by the Fourth Amendment.(a1) Grant received from the District Education Fund, Amended by the Fifth Amendment.(a2) Grant received from the Rural Municipality or Municipality, (b) Amount received from fees, (c) Amount received from donations or charities, and (d) Amount received from other sources. (2) The operation and audit of the Fund pursuant to sub-section (1) shall be as specified. Amended by the Fourth Amendment.14. Government of Nepal may give directives: (1) The Government of Nepal may, as necessary, issue directives to the District Education Committee Deleted by the Sixth Amendment and the School Management Committee. (2) It shall be the duty of each District Education Committee Deleted by the Sixth Amendment and School Management Committee to comply with the directives given pursuant to sub-section (1). 15. Government of Nepal may relocate, merge, rename, or close schools: Deleted by the Second Amendment The Government of Nepal or the specified authority may, after obtaining the opinion of the District Education Committee, relocate any operating school from one place to another, or merge two or more schools to form one school, or change the name of a school, or close a school, Added by the Second Amendment.or grant permission or approval to establish a school in a specified place or area, or to operate additional classes in a school. Amended by the Seventh Amendment.16. School Property: (1) Property in possession of a community school shall be deemed to be public property. If the permission or approval is cancelled pursuant to this Act, or if a community school is merged into another school, the property of such school, if not used for the work of other schools by the Government of Nepal, shall be sold as per prevailing law and the amount received shall be deposited in the concerned District Education Fund.

Amended by the Eighth Amendment.(2) The property of an institutional school operated under an educational trust shall remain in the name of that school. If a school is operated as a public educational trust, the property of such school shall be deemed to be public property, and the nature of such property shall not be altered. Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.(2a) Notwithstanding anything contained in sub-section (2), an educational trust or its operator may transfer the whole or part of its investment to a successor as specified. Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.(2b) If a school operated under an educational trust is closed for any reason, property held

in the name of such school which belongs to a school operated as a public trust shall become public property, and such property may be used by the Government of Nepal for the work of any community school or educational institution; and property of a school operated under a private trust, if not transferred to anyone pursuant to sub-section (2a), may be given by the then existing trustees of such trust to a school or educational institution as specified. Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.(2c) If the trustees of a private trust do not give such property to any school or educational institution pursuant to sub-section (2b), or if there are no such trustees, the property held in the name of that school may be made available by the Government of Nepal to any community school or any educational institution. Amended by the Eighth Amendment.(3) The property of an institutional school operated under a company shall remain in the name of that company.

(4) An institutional school must obtain approval from the concerned District Education Committee before receiving any kind of movable or immovable property as donation or charity from any person or association. Provided that, before receiving movable or immovable property in such a manner from a foreign person or association, prior approval of the Government of Nepal must be obtained.

(5) Property received pursuant to sub-section (4) shall not be sold without the approval of the Government of Nepal. Amended by the Seventh Amendment.16ka.

Exemptions and facilities for schools: (1) Notwithstanding anything contained in prevailing law, no registration fee shall be levied when passing any deed in the name of a community school or an institutional school operated as an educational trust. (2) When passing any deed in the name of a school other than those mentioned in sub-section (1), the Government of Nepal may provide exemption from registration fee on a basis as specified. (3) Other exemptions and facilities to be provided to community schools and institutional schools operated as educational trusts shall be as specified. Added by the Seventh Amendment.16kha.

Cancellation of permission or approval: If any institutional school fails to provide details within the period pursuant to sub-section (4) of section 3, or commits any other act contrary to this Act or the rules framed under this Act, the specified authority shall cancel the permission or approval granted to such school. Provided that, before such cancellation of permission or approval, the concerned school shall not be deprived of an opportunity to submit its defense. 16ga. Classification of schools: Schools shall be classified on a basis as specified. Added by the Eighth Amendment.16ga1.

School to be maintained as a safe zone: (1) In order to create an environment for studying and teaching freely and without fear in schools, and to prevent any kind of undesirable activities within the school, the school shall be maintained as a safe zone. (2) The conditions and standards to be observed by a school when maintaining a safe zone pursuant to sub-section (1) shall be as specified. 16gha.

Provision relating to fees: Amended by the Eighth Amendment.(1) A community school shall not collect any kind of fee in the name of students for school education for which the Government of Nepal has declared free education. Added by the Eighth Amendment.(1a)

Notwithstanding anything contained in sub-section (1), donations, gifts, subscriptions, or assistance given voluntarily by a parent to a community school may be accepted. Added by the Eighth Amendment.(1b) The Government of Nepal shall arrange for necessary resources to provide compulsory and free education up to the basic level and free education up to the secondary level to all children. Added by the Eighth Amendment.(1c)

Arrangements shall be made to provide free education to blind children through Braille script and to children with hearing or speech disabilities through sign language. Amended by the Eighth Amendment.(2) Fees to be charged from students studying in school education other than the school education for which free education has been declared pursuant to sub-section (1) shall be determined on a basis as specified.

Provided that, arrangements shall be made to provide free education in community schools to Dalits,

Janajatis, women, and other students living below the poverty line. (3) Once a school has charged an admission fee for enrolling a student in a certain grade, it shall not charge any kind of fee again for enrolling the same student in another grade of the same school. (4) A school shall not charge any kind of fee from students for the construction of physical infrastructure of the school. Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.(5) An institutional school must determine the fees chargeable from students by getting them approved by the specified authority. While granting approval for such fee determination, the specified authority shall do so based on the facilities provided by the school. (6) If any school charges any fee from students contrary to this Act, the specified authority shall cause such fee to be refunded to the concerned student. (7) The specified authority may impose a fine of up to twenty-five thousand rupees on a school that charges fees contrary to this Act. 16nga.

Nepal Teachers' Federation, Added by the Seventh Amendment.code of conduct for teachers and employees, and other arrangements: (1) There shall be a Nepal Teachers' Federation to work in relation to the professional interests of teachers of community schools. (2) The Nepal Teachers' Federation may be formed at the central and district levels. (3) Elections for the Nepal Teachers' Federation shall be held as specified. (4) Deleted by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006 (5) Amended by the Eighth Amendment.A teacher or employee shall be removed from the post in the following circumstances: (a) Deleted by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006 (b) If he/she fails to fulfill his/her official duties, (c) If he/she remains absent from school without notice for more than fifteen consecutive days, (d) If it is proven that he/she came to school under the influence of alcoholic substances, (e) If he/she is punished by a court on a criminal charge involving moral turpitude, Added by the Eighth Amendment.(f) If a teacher or employee of a community school engages in teaching or working elsewhere during office hours, or engages in any other commercial activity, Added by the Eighth Amendment.(g) If a teacher or employee is found to be a member of the executive committee of a political party. Explanation: For the purpose of this clause, "executive committee" means the central level, provincial level, district level, or local level executive committee formed according to the statute of a political party. Added by the Eighth Amendment.16nga1. Not to obtain permanent residence permit: Teachers or employees working in community schools shall not obtain or apply for a permanent residence permit. If any teacher or employee has obtained or applied for such permit before the commencement of this section, such teacher or employee shall be dismissed from service in a manner that renders them disqualified for the service in the future. Added by the Eighth Amendment.16nga2.

To submit details by self-declaration: (1) If a teacher or employee of a community school has obtained a permanent residence permit or has applied for such permit, he/she must, within thirty days from the date of commencement of this section, submit a self-declaration with the following details to the school where he/she is working: (a) His/her name, surname, service, name of the school where working, and current position, (b) If a permanent residence permit has been obtained, the date of obtaining such permit, or if an application for obtaining such permit has been made, the date thereof, and the name of the concerned country, (c) Whether he/she is willing to renounce the permanent residence permit obtained or to cancel the application made for such permit. (2) If the spouse of a teacher or employee of a community school has obtained a permanent residence permit, the concerned teacher or employee must submit the details pursuant to sub-section (1) to the school where he/she is working within thirty days from the date of commencement of this section. (3) Upon receiving the details pursuant to sub-section (1) or (2), the school must send such details to the concerned District Education Office within fifteen days from the date of receipt. Added by the Eighth Amendment.16nga3.

Information may be provided: (1) If any person receives information that a teacher or employee has obtained a permanent residence permit contrary to section 16nga1, such person may provide that information to the Resource Center or the District Education Office of the area where the concerned teacher or employee is working. (2) If information pursuant to sub-section (1) is received at a Resource Center, the Resource Center must send such information to the District Education Office within seven days from the date of receipt. (3) If information is received pursuant to sub-sections (1) and (2) or from any other source that any teacher or employee has obtained a permanent residence permit or has applied for such permit, the District Education Office, after the expiry of the period pursuant to sub-section (1) of section 16nga2, shall proceed with necessary action regarding taking departmental action against such teacher or employee. (4) Upon receiving a written communication pursuant to sub-section (3), the authority empowered to impose punishment shall initiate an inquiry within three days regarding such teacher or employee, and if upon inquiry it appears that any teacher or employee has obtained a permanent residence permit or has applied for such permit, he/she shall be punished pursuant to section 16da1 within three months, and information thereof shall be provided to the Department of Education and the Ministry of Education within fifteen days. Added by the Eighth Amendment.16da4. No punishment shall be imposed: Notwithstanding anything contained elsewhere in this Act, a teacher or employee of a community school who has obtained a permanent residence permit or has applied for such permit before the commencement of this section, if he/she admits it and submits an application within sixty days from the date of commencement of this section, along with proof that he/she has renounced the permanent residence permit obtained or has made a written request to the concerned country to cancel the application made for obtaining such permit, such teacher or employee shall not be punished under this Act. Added by the Eighth Amendment.16da5. No facilities other than provident fund and insurance: Notwithstanding anything contained in this Act and the rules framed under this Act, if a teacher or employee of a community school is dismissed from service for having obtained a permanent residence permit contrary to section 16da1, and if the spouse of such teacher or employee has obtained a permanent residence permit, the spouse of such teacher or employee shall not receive service facilities under this Act and the rules framed under this Act, other than the amount from the Employee Provident Fund and insurance. Added by the Seventh Amendment.16cha.

Educational qualification: The educational qualification required for a school teacher shall be as specified. Added by the Eighth Amendment.16cha1. Ratio of teachers to students to be maintained: The District Education Committee shall maintain the ratio of students to teachers as specified, based on the number of students regularly studying in each school and on subjects. Added by the Eighth Amendment.16cha2. Teacher not to be used for other work: (1) A teacher of a community school shall not be used for work other than work related to providing education or school administration. (2) Notwithstanding anything contained in sub-section (1), a teacher may be assigned work relating to national census, elections, natural disaster relief, or any other work specified by the Government of Nepal, provided that the teaching-learning activities of the school are not hindered. Added by the Seventh Amendment.16chha. May be reinstated by court order: (1) A teacher who has been removed or dismissed from service after departmental punishment may be reinstated only by order or judgment of a court. (2) A teacher reinstated pursuant to sub-section (1) shall receive full salary, allowance, and salary increments, if any, from the date of removal to the date of reinstatement. Added by the Eighth Amendment.(3) Notwithstanding anything contained in sub-section (1), there shall be an inquiry committee as specified, once, to investigate matters relating to teachers and employees removed due to political bias, as recommended by the task force formed in 1995 (2052 BS) and remaining to be recommended within the criteria of that task force, and teachers and employees removed from service due to the conflict that existed within the country from Falgun 1, 1995 (2052 BS) to Mangsir 5, 2006 (2063 BS) and

the movements thereafter, and to submit suggestions to the Government of Nepal. Added by the Seventh Amendment.16ja. Transfer of teachers: (1) A teacher desiring transfer shall fill out the form as specified and submit an application to the concerned District Education Office. (2) Upon receiving an application pursuant to sub-section (1), Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.the District Education Officer may transfer such teacher if the post is vacant and the subject matches. Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.Provided that, while making such transfer, consent of the District Education Officer of the place where the applicant is working must be obtained.

Amended by the Eighth Amendment.(3) Notwithstanding anything contained in sub-sections (1) and (2), a permanent teacher who has completed a service period of five years in the same school may be transferred, based on criteria as specified, by the District Education Officer within his/her district, by the Regional Director within his/her region, and by the Department of Education to any school in Nepal. Provided that, if it is necessary to adjust posts or if, for special reasons, a teacher must be transferred from a school, it shall not be a bar to transfer such teacher under this section even if he/she has not completed a service period of five years in the same school, stating the reason. (4) While making a transfer pursuant to sub-section (3), the District Education Officer must obtain prior approval of the Regional Education Director, the Regional Director must obtain prior approval of the Department of Education, and the Department of Education must obtain prior approval of the Ministry Deleted by the Eighth Amendment . Added by the Seventh Amendment.16jha. Not applicable to institutional schools: Except as provided in this Act, the provisions mentioned in sections 11a., 15, Amended by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.sub-section (5) of section 16da, sections 16cha., 16ja., and sub-section (1) and clauses (a), (d), and (e) of sub-section (2) of section 17 shall not apply to institutional schools. Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.Provided that, (1) The provision relating to moving a school from one place to another pursuant to section 15 shall also apply to institutional schools. (2) Provisions relating to changing the name of an institutional school shall be as specified. Added by the Act to Amend Some Nepal Acts relating to Education and Sports, 2006.16nya. Institutional school to provide scholarship: (1) An institutional school must provide free scholarship, as specified, to students from underprivileged, disabled, women, Dalit, or Janajati backgrounds, totaling not less than ten percent of the total number of students enrolled in the school. (2) For selecting students for scholarship pursuant to sub-section (1), there shall be a Scholarship Selection Committee in each school consisting of the principal of the school, a representative of the District Education Office, and a representative of parents in the School Management Committee. (3) The basis for selecting students for scholarship pursuant to sub-section (1) shall be as specified. Amended by the Eighth Amendment.16ta.

Not to receive salary and allowance and service period not to be counted: Except in the circumstances mentioned in section 16chha. or in the case of staying on leave approved according to rules, a teacher absent from school shall not receive salary and allowance for the period of absence, and such period shall not be counted in his/her service. Added by the Eighth Amendment.16tha. Provision relating to employees: (1) A community school shall have staff posts in such number as approved by the Ministry. (2) Provisions relating to the appointment, terms of service, and facilities of employees pursuant to sub-section (1) shall be as specified. (3) If a school employee, who was appointed to an approved post of the school under the law then in force up to Jestha 15, 1994 (2051 BS) and was continuously working until the commencement of this section, is no longer in service, such employee shall be provided with facilities as specified. (4) When filling vacancies in the approved staff posts of a school pursuant to sub-section (1), the Commission shall, from among the employees working at the time of commencement of this section, advertise as specified and fill the

posts through internal competition. (5) The age limit shall not apply to school employees pursuant to sub-section (3) for being candidates in the advertisement pursuant to sub-section (4). Added by the Eighth Amendment.16da. Not to expel children or subject them to physical or mental abuse: (1) No child shall be expelled from school. (2) Children studying in school shall not be subjected to physical or mental torture or abuse. Added by the Eighth Amendment.16dha. Not to operate educational consulting service, foreign educational program, or teaching course without permission: (1) No person shall operate an educational consulting service, bridge course, language teaching class, preparatory class, or any educational program conducted in a foreign country without permission under this Act. (2) If any person desires to operate any educational program conducted in Nepal in a foreign country, upon submitting an application to the Ministry with the recommendation of the Nep (2) A teacher who has obtained a temporary teaching license pursuant to sub-section (1) shall obtain a permanent teaching license from the Commission within five years. (3) Notwithstanding anything contained in the prevailing Nepal law, a teacher teaching in a higher secondary school under the Higher Secondary Education Act, 2046 at the time of commencement of this section shall not be subject to the age limit for being a candidate in the first advertisement as specified made by the Commission for the post of secondary teacher after the commencement of this section. 41.